

TENTATIVE RULING

Case: **Ramirez et al. v. Ceja-Reyes, Inc. et al.**
Case No. CV-2023-0029

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Defendant Westside Transplant, LLC's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's unopposed motion to dismiss the complaint of plaintiff Felipe Fajardo for failure to comply with court ordered deposition and request for terminating and monetary sanctions is **GRANTED**. (Code Civ. Proc., § 2023.030, subd. (d)(3).) The Court finds that plaintiff's continued failure to appear for his deposition, in violation of the Court's October 30, 2025, Order, warrants dismissal of plaintiff's complaint. (Code Civ. Proc., § 2023.010, subds. (d), (g); *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390 [terminating sanctions are warranted based on repeated refusals to respond to discovery requests and violation of previous court orders]; *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; Rose Decl., ¶¶ 4 – 10, Exhibits 2 – 4.)

The Court awards defendant sanctions in the amount of **\$2,492.50**. (Code. Civ. Proc., 2030.030, subd. (a); Rose Decl., ¶ 23, Exhibits 5, 6.)

Plaintiff **SHALL** pay this sanction by **February 14, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Simonis v. Simonis**
 Case No. CV-2025-0893

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Defendant Brian Simonis' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

The Court finds that plaintiff Alan Simonis fails to provide any explanation for the inconsistency between the dates identified in the original complaint regarding when he discovered defendants' alleged wrongdoing, and the date identified in the first amended complaint. (Compl., ¶¶ 19, 20; FAC, ¶ 16.) Thus, the Court disregards the date identified in the first amended complaint for the purpose of determining when the statute of limitations began to run on the causes of action contained therein. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343-344 [where an amended complaint attempts to avoid defects set forth in a prior complaint by ignoring them, the court may examine the prior complaint to ascertain whether the amended complaint is merely a sham]; *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447 ["Where no explanation for an inconsistency is offered, the trial court is entitled to conclude that the pleading party's cause of action is a sham and sustain a demurrer without leave to amend."].)

The Court rules on defendant's demurrer to plaintiff's first amended complaint as follows:

- The demurrer to the first cause of action for financial elder abuse is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable four-year statute of limitations. (Welf. & Inst. Code §15610.30, 15657.7; *Bell v. Bank of California* (1908) 153 Cal. 234, 245 [a plaintiff's failure to comply with the statute of limitations is subject to a general demurrer]; *Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 101 [the statute of limitations begins to run when the plaintiff has notice or information of circumstances to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his investigation]; *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807; *Gutierrez v. Mofid* (1985) 39 Cal.3d 892, 899; Compl., ¶¶ 19, 20.)
- The demurrer to the second cause of action for conversion abuse is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., 430.10, subd. (e).) The Court finds that this cause of action is barred by the applicable three-year statute of limitations. (Code Civ. Proc., § 338, subd. (c); *Bell, supra*, 153 Cal. at p., 245; *San Francisco Credit Clearing House v. Wells* (1925) 196 Cal. 701, 706; see *Fearon v. Dep't of Corr.* (1984) 162 Cal.App.3d 1254, 1257 ["A conversion can occur when a willful failure to return property deprives the owner of possession."]; FAC, ¶ 42.)